

Referral Partner Agreement

Licensed Provider. Stem Cell Services. Editable template. Regenerative Revival.

This Referral Partner Agreement (the “Agreement”) is entered into as of [EFFECTIVE DATE] by and between [COMPANY LEGAL NAME], a [STATE] [ENTITY TYPE] (“Company”), and [PROVIDER LEGAL NAME] (“Provider”). Company and Provider are each a “Party” and together the “Parties.”

Template note: fields in [brackets] are edited for each provider. The fee and payment terms live in Exhibit A so they can be updated without rewriting the body. This template is a starting point for review by Company's healthcare counsel and is not legal advice.

Important. Paying a licensed provider a percentage of the price of a medical treatment in exchange for sending patients is the most legally sensitive arrangement in this program. State fee-splitting and self-referral rules, patient-brokering statutes, and the federal Anti-Kickback Statute can all apply, and percentage-of-treatment referral deals have been prosecuted. The safer structure is a flat, fair-market-value fee for defined marketing, education, or co-management services that does not vary with the number of patients referred or the price of their treatment. This template is drafted to support that framing, but it must be reviewed by healthcare counsel before signing.

1. Engagement and Purpose

Company markets and coordinates access to regenerative therapies, including mesenchymal stem cell (MSC) and exosome-based treatments (the “Services”). Provider operates a licensed healthcare practice and wishes to educate and promote the Services to its patients and to refer interested individuals to Company's intake process. Company engages Provider as an independent, non-exclusive marketing and referral-source partner on the terms below. Provider does not deliver, and is not responsible for delivering, the Services, which are provided by Company's licensed medical network.

The Parties intend that all compensation under this Agreement is for bona fide marketing, education, and patient co-management or consultation services actually performed by Provider, valued at fair market value, and is not a payment for referring or steering patients.

2. Definitions

- **Qualified Referral** means a prospective client who reaches Company through Provider's unique tracking link or code, or who identifies Provider at intake, and completes Company's intake process.
- **Completed Transaction** means a Service that has been delivered or scheduled and paid for in full, and for which the applicable refund or cancellation window has passed.
- **Collected Revenue** means the amount Company actually collects from a client for a Completed Transaction, net of discounts, taxes, financing fees, and chargebacks.
- **Tracking Link/Code** means the unique referral link and/or code Company issues to Provider through Everflow for attribution.

- **Attribution Window** means the [30]-day period after a prospect first uses Provider's Tracking Link/Code, or is recorded as referred by Provider, during which a resulting Completed Transaction is credited to Provider, subject to Company's verification.

3. Scope of Services

This Agreement covers the stem cell and regenerative Services listed in Exhibit A. Peptide products and any other offerings are not covered by this Agreement.

4. Fee and Compensation

- Company will pay Provider the fee set out in **Exhibit A** (Fee and Payment Schedule).
- The fee is earned only on a Completed Transaction that is properly attributed to Provider within the Attribution Window and verified by Company.
- No fee is owed on Provider's own personal purchases, on canceled or refunded transactions, or on amounts Company does not actually collect.
- The Parties may update Exhibit A by mutual written agreement if the structure or rate changes. A new signed Exhibit A replaces the prior one going forward; fees already earned are not affected.
- **Fair market value.** The Parties agree the compensation in Exhibit A reflects the fair market value of the services Provider actually performs, was set in advance, and does not take into account the volume or value of any referrals or other business between the Parties beyond those services.

5. Tracking and Attribution

- Company issues Provider a unique Tracking Link and/or Code through Everflow. Provider must use only the Tracking Link/Code issued to it.
- Company verifies attribution and completion before paying any fee. Attribution is last-touch within the Attribution Window.
- Provider will not condition any clinical care, advice, or referral on a patient's use of Company, and will present Company as one option among others. Self-referrals made to earn a fee are not permitted.

6. Payment Terms

- Company pays earned fees on the schedule in Exhibit A (default: Net [30] from the date a Completed Transaction is verified, batched monthly).
- Company pays once Provider's payable balance reaches the minimum threshold of [\$ AMOUNT]. Payment method: [ACH / check / other].
- Provider is an independent contractor responsible for its own taxes. Company will issue a Form 1099 where required, and Provider will provide a completed Form W-9 before the first payment.

7. Clawback and Adjustments

- If a client cancels, refunds, or charges back a transaction, or if Company does not collect the full amount, the related fee is reversed.

- Company may offset reversed fees against future payments or, if none are due, invoice Provider for the amount, payable within [15] days.

8. Compliance, Conduct, and Marketing Standards

Provider agrees to the following at all times. These standards protect clients, Company, and Provider, and they reflect Company's medical compliance guidelines.

- **No medical claims about Company's Services.** When promoting the Services, Provider will not use the words "heal" or "cure," will not promise or guarantee outcomes, and will not claim a therapy "fixes" any condition. Provider will use education-first language such as "support," "promote," "may help," or "designed to support."
- **Candidacy and disclosure.** Provider will include a candidacy disclaimer (for example, "not everyone is a candidate") and will disclose its financial relationship with Company where required, consistent with applicable advertising and professional disclosure rules.
- **Approved materials only.** Provider will use only the marketing materials, claims, and testimonials approved by Company (see Exhibit B), and will not create new medical claims or use unapproved before-and-after or testimonial content.
- **Company review.** All Provider content that references Company or the Services is subject to Company review, and Company may require edits or removal.
- **Health information.** Provider will handle any client or patient information in accordance with applicable privacy laws, and intake and medical communications for the Services run through Company's systems.
- **Patient free choice and clinical independence.** Provider will respect each patient's free choice of provider, will exercise independent professional judgment in the patient's interest, and will not let this Agreement influence clinical care.
- **Compliance with law.** Provider will comply with all applicable laws, including advertising rules and applicable state healthcare rules, and with Company's compliance guidelines as updated from time to time.

9. Independent Contractor

Provider is an independent contractor. Nothing in this Agreement creates an employment, agency, partnership, or joint venture relationship. Provider has no authority to bind Company, to set or quote prices other than Company's published prices, or to act on Company's behalf, and is not entitled to employee benefits.

10. Representations and Warranties

- Each Party has the authority to enter into this Agreement.
- Provider will perform bona fide marketing, education, and co-management or consultation services, and the Parties intend that the compensation under this Agreement reflects the fair market value of those services and is not a payment for patient referrals.
- Provider holds and will maintain all licenses required to practice in good standing, and has confirmed that its participation in this Agreement is permitted under the laws and professional rules that apply to it, including any fee-splitting, self-referral, and anti-kickback rules.

- Provider will make any disclosure of its financial relationship with Company that applicable law or professional rules require it to make to patients.

11. Confidentiality

Each Party will keep the other's non-public information confidential, including pricing, client lists, business plans, and the terms of this Agreement, and will use it only to perform under this Agreement. This Section survives termination.

12. Term and Termination

- This Agreement begins on the Effective Date and continues for [one year], then renews for successive [one-year] terms unless either Party gives [30] days' written notice of non-renewal.
- Either Party may terminate for convenience on [30] days' written notice. Either Party may terminate immediately for a material breach not cured within [10] days of notice, and Company may suspend or terminate immediately for a compliance violation.
- On termination, Company will deactivate Provider's Tracking Link/Code and will pay fees earned on Completed Transactions before the termination date, subject to clawback. No fee is earned on transactions completed after termination.

13. Indemnification and Limitation of Liability

- Each Party will indemnify the other against third-party claims arising from its own breach, negligence, or violation of law. Provider will indemnify Company for claims arising from Provider's statements or non-compliant conduct.
- Except for indemnification obligations, breach of confidentiality, or willful misconduct, neither Party is liable for indirect or consequential damages, and each Party's total liability is limited to the fees paid or payable in the [12] months before the claim.

14. General

- **Governing law.** This Agreement is governed by the laws of the State of [STATE], without regard to its conflict-of-laws rules.
- **Entire agreement and amendment.** This Agreement, including its Exhibits, is the entire agreement between the Parties and replaces any prior understanding. It may be amended only in a writing signed by both Parties, except that Exhibit A may be updated as described in Section 4.
- **Assignment.** Provider may not assign this Agreement without Company's written consent. Company may assign it to an affiliate or successor.
- **Notices.** Notices must be in writing and sent to the contact information below or to an updated address provided in writing.
- **Severability and waiver.** If any provision is unenforceable, the rest remains in effect. A waiver is effective only if in writing.
- **Counterparts and electronic signature.** This Agreement may be signed in counterparts and by electronic signature, each an original.

Agreed and accepted:

COMPANY: [COMPANY LEGAL NAME]

By: _____ Date: _____

Name: [] Title: []

PROVIDER: [PROVIDER LEGAL NAME]

By: _____ Date: _____

Name: [] Title: []

Exhibit A - Fee and Payment Schedule

Complete this Exhibit for each provider. If the structure or rate changes, replace it with a new signed Exhibit A.

Pick one fee structure below. A flat fee that does not vary with treatment price or referral count generally carries lower legal risk than a percentage of treatment revenue. Confirm the structure with counsel.

Item	Fee to Provider	Earned when	Notes
Stem cell and regenerative Services (all treatment areas on Company's then-current price list)	[]% of Collected Revenue OR flat \$ [] per Completed Transaction	Treatment completed and paid in full; refund window passed	Cap, if any: \$[]

Lower-risk alternative (recommended): a flat, fair-market-value fee for defined services. Describe the services and the fee here: **[describe co-management, education, or consulting services and the flat \$____ per month or per session fee]**.

Payment schedule: Net **[30]** from verification of a Completed Transaction, batched monthly.

Minimum payout threshold: \$[].

Payment method: **[ACH / check / other]**.

Attribution window: **[30]** days, last-touch.

Tracking code/link: **[issued via Everflow]**.

Approved by Company: _____ **Date:** _____

Acknowledged by Provider: _____ **Date:** _____

Exhibit B - Approved Marketing Standards and Prohibited Language

These standards apply to all Partner content that references Company or its Services. They are the same for every partner.

Always do

- Use education-first, supportive language: “support,” “promote,” “may help,” “designed to support.”
- Include a candidacy disclaimer, for example: “Not everyone is a candidate. Eligibility is determined after a medical review.”
- Disclose the relationship where required, for example: “in partnership with Regenerative Revival.”
- Use only Company-approved graphics, captions, and testimonials.
- Send anyone with medical questions to Company’s intake process.

Never do

- Never use “heal” or “cure.”
- Never promise or guarantee results, or say a therapy “fixes” a condition.
- Never give medical advice on Company’s behalf or speak for the medical team.
- Never make a claim that is not in the approved materials.
- Never collect or post a client’s medical or personal health information outside Company’s systems.

Compliant phrasing examples

Instead of	Use
“Stem cells heal your knees”	A regenerative approach designed to support joint health
“This cures neuropathy”	May help support nerve-related symptoms; candidacy is reviewed individually
“Guaranteed results”	Results vary, and not everyone is a candidate